

ORDERS ON IA.No.2/2023.

Dhr has filed this application U/s 39 R/w Sec.151 of CPC praying to transfer the decree to the court of Prl. Civil Judge and JMFC, Ramanagar.

It is stated in the affidavit filed in support of the application that Jdr is residing within the jurisdiction of this court and he is carrying on business within the jurisdiction of Learned Prl. Civil Judge and JMFC Court, Ramanagar. Hence, the Dhr has prayed to transfer this petition to the court of Learned Prl. Civil Judge and JMFC Court, Ramanagar for execution of decree.

This petition is filed by the petitioner praying for execution of the money decree passed in O.S.740/2022 dated 06.02.2023. As per the said decree the defendant is held liable to pay sum of Rs.2,13,474/- to the plaintiff with interest. The plaintiff has sought for execution of the decree by way of attachment of movable properties of Jdr and by way of arrest of the Jdr. As per the address mentioned in the decree and as stated by the Dhr in the affidavit filed in support of the application, the Jdr is running business within the jurisdiction of the Ramanagar. As such the decree for recovery of money cannot be executed against the Jdr by way of attachment of the property of Jdr and by arresting him.

Sec.39 of the CPC provides that if a person against whom the decree is passed actually and voluntarily resides or carries on business or personally work for gain within the local limits of jurisdiction of some other court, the court which passed the decree may on the application of the Dhr send it for execution to another court of competent jurisdiction.

In this case, the Dhr himself has sought for transfer the decree to

Ramanagar Court. Since, Jdr is residing within the local jurisdiction of Ramanagar and since he is carrying on the business in Ramanagar, I am of the opinion that, there is necessity of transferring the decree to court of Learned Prl.Civil Judge and JMFC Court, Ramanagar in order to enable the decree holder to get the execution of the decree. Hence, I am of the opinion that, the application filed by the Dhr is deserves to be allowed. Hence, I proceed to pass the following:-

ORDER

The application filed by the Dhr U/s 39 R/w Sec.151 of CPC is hereby allowed.

The office is hereby directed to transfer the decree dated 06.02.2023 passed by this court in O.S.740/2022 to the court of Learned Prl. Civil Judge and JMFC Court, Ramanagar for execution of the said decree in accordance with law.

Accordingly, this petition is closed before this court.

LII ACC & SJ, B'luru.